



Official copy of register of title

Title number BM410656

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- Issued on 24 May 2017.
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- This title is dealt with by HM Land Registry Leicester Office.

A: Property Register

This register describes the land and estate comprised in the title.

BUCKINGHAMSHIRE : AYLESBURY VALE

- 1 The Freehold land shown edged with red on the plan of the above title filed at the Registry and being 10 to 14 The Courtyard, Rock Lane Farm, Liscombe Park, Soulbury, Leighton Buzzard (LU7 0GY).
- 2 The land edged and numbered 1, 2 and 3 in blue on the title plan has the benefit of the following rights reserved by a Transfer of 5 Rocklane Farm dated 29 January 1999 made between (1) Liscombe Holdings Plc (Transferor) and (2) Nigel Alexander Oliver Smith:-

3. EXCEPTIONS

The Exceptions are reserved out of the Property for the benefit of each and every part of the Retained Land

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1.1 "the Exceptions" means the exceptions and reservations to the Transferor set out in the Second Schedule.

SECOND SCHEDULE

The Exceptions

1. The right to free uninterrupted passage and running of the Services through the Service Apparatus that are now or may at any time during the Perpetuity Period be laid in under through or upon the Property and serving the Retained Land
2. The right at all reasonable times to enter on to the property with or without workmen tools and materials for the purpose of repairing renewing maintaining supporting inspecting or cleansing where appropriate laying constructing connecting the Services and Service Apparatus and any building or structure (including the foundations flues eaves gutters and spouts forming part thereof) erected upon the Retained Land causing as little damage and disturbance as possible forthwith making good any damage thereby caused

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A: Property Register continued

1.8 "the Services" means water soil effluent gas fuel oil electricity telephone telephonic signals television visual audio fax electronic mail data information communication and other services

1.9 "Service Apparatus" means sewers drains channels pipes water courses gutters wires cables ducts flues conduits laser optic fibres electronic data or impulse communication transmission or reception systems and other conducting media septic tanks and associated equipment

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1.2 "the Perpetuity Period" means the period of 80 years commencing on the date of this Transfer."

NOTE: The Property referred to is 5 Rocklane Farm. The land edged and numbered 1,2 and 3 in blue on the title plan forms part of the Retained Land referred to.

3 The land edged and numbered 3 in blue on the title plan has the benefit of the rights granted by but is subject to the rights reserved by the Transfer dated 23 June 2000 referred to in the Charges Register.

4 The Transfer dated 23 June 2000 referred to above contains provisions as to light or air and boundary structures.

5 The land has the benefit of but is subject to the rights granted by a Deed dated 26 March 2003 made between (1) Provide Developments Limited (2) Allquality Limited (3) Michael Jonathan Christopher Oldham and Michael John Hore and (4) Martin John Darvill.

NOTE: Copy filed under BM241155.

6 The land edged and numbered 4 in blue on the title plan has the benefit of the rights granted by but is subject to the rights reserved by the Transfer dated 3 February 2006 referred to in the Charges Register.

7 The Transfer dated 3 February 2006 referred to above contains provisions as to light or air and boundary structures.

8 The land edged and numbered 3 in blue on the title plan has the benefit of the following rights granted by but is subject to the following rights reserved by the Transfer dated 3 February 2006 referred to in the Charges Register:-

"The Property is transferred together with the Rights which are for the benefit of the Transferee and its successors in title the owners and occupiers for the time being of the Property and persons authorised by him and them The Exceptions are reserved out of the Property for the benefit of each and every part of the Retained Land

FIRST SCHEDULE

Rights granted

1. Subject to the Transferees paying a fair proportion of the costs of maintaining the same the right of free and uninterrupted passage and running of any Services to and from the Property through the Service Apparatus that are now laid in under through or upon the Retained Land and are now serving the Property

2. The right at all reasonable times and upon 48 hours notice in writing (save in case of emergency) to enter on the Retained Land with or without workmen tools and materials for the purpose of repairing renewing maintaining supporting and inspecting or cleansing where appropriate the Services and the Service Apparatus causing as little damage as possible and forthwith making good all damage caused

3. A right of support shelter and protection from the Retained Land including any party walls or structures for the purpose of supporting upholding and maintaining the Property

A: Property Register continued

SECOND SCHEDULE

The Exceptions

1. Subject to the Transferor paying a fair proportion of the costs of maintaining the same the right to free uninterrupted passage and running of any Services to and from the Retained Land through the Service Apparatus that are now laid in under through or upon the Property and are now serving the Retained Land

2. The right at all reasonable times to enter upon 48 hours prior written notice (save in case of emergency) on to the Property with or without workmen tools and materials for the purpose of repairing renewing maintaining supporting inspecting or cleansing where appropriate causing as little damage and disturbance as possible and forthwith making good any damage caused

3. A right of support shelter and protection from the Property including any party walls or structures for the purpose of supporting upholding and maintaining the Retained Land"

9 The Transfer dated 3 February 2006 referred to above contains the following provision:-

"The Agreements and Declarations

1. Nothing in this Transfer shall operate as a grant whether express or implied of any right of light or air or other easements which would interfere with or prevent the use by the Transferor of any part of the Retained Land for building or any other purposes

2. All Services and Service Apparatus and other matters or things as are now used or enjoyed or intended to be used and enjoyed in common by the owners and occupiers for the time being of the Property and any part of the Retained Land shall continue to be so enjoyed and used and shall be repaired and maintained at the fair and proportionate expense of the owners of the properties entitled to use the same"

10 (26.03.2007) The land edged and numbered 1 in blue on the title plan has the benefit of the rights granted by but is subject to the rights reserved by the Transfer dated 28 February 2007 referred to in the Charges Register.

11 (26.03.2007) The Transfer dated 28 February 2007 referred to above contains provisions as to light or air and boundary structures.

12 (26.11.2015) The land has the benefit of the rights reserved by but is subject to the rights granted by a Transfer of adjoining land dated 17 November 2015 made between (1) Thameside Homes Limited (Transferor) and (2) Courtyard Management Company (Rock Lane Farm) Limited (Transferee).

NOTE:-Copy filed under BM401687.

B: Proprietorship Register

This register specifies the class of title and identifies the owner. It contains any entries that affect the right of disposal.

Title absolute

1 (12.12.2016) PROPRIETOR: COURTYARD MANAGEMENT COMPANY (ROCK LANE FARM) LIMITED (Co. Regn. No. 06582924) of 9 The Courtyard, Rock Lane Farm, Liscombe Park, Soulbury, Leighton Buzzard LU7 0GY.

2 (19.10.2009) RESTRICTION: No disposition of the registered estate by the proprietor of the registered estate resulting in a change of ownership of the land is to be registered unless there is produced to the Chief Land Registrar a certificate by a solicitor confirming that the matters contained in paragraph 10 of Schedule 5 of the Deed dated 26 March 2003 referred to in the Property Register have been complied with.

C: Charges Register

This register contains any charges and other matters that affect the land.

- 1 The land in this title with other land is subject to an annual sum of £2 payable to the Churchwardens and overseers of the Parish of Soulbury.

NOTE: No further details were supplied on first registration.

- 2 (18.10.1996) The land is subject to the following rights reserved by a Conveyance by way of Deed of Gift of the land in this title and other land dated 28 September 1970 made between (1) Sir Bryan Cosmo Bonsor (Grantor) and (2) Nicholas Cosmo Bonsor (Donee):-

"Subject to the exceptions and reservations contained in the Second Schedule hereto

THE SECOND SCHEDULE

EXCEPTING AND RESERVING unto the Grantor THE RIGHTS for the Grantor owners and occupiers of the land retained by the Grantor or any part thereof in common with all others entitled to any like rights:-

(ii) To the free flow of water soil and electricity to the land and premises retained by the Grantor through such pipes wires and drains as are in under or upon the land hereby conveyed to the Donee including the part of Liscombe House more particularly described in the Third Schedule hereto together with the right to enter on the land and premises hereby conveyed at all reasonable times and upon giving reasonable notice for the purpose of maintaining repairing or renewing the same but making good any damage caused by so doing

(iii) To use the telephone wires across the land and premises hereby conveyed together with a right in common with the engineers or workmen of the Post Office to enter on the land and premises hereby conveyed for the purpose of maintaining repairing and renewing the said wire subject to making good any damage caused by so doing."

NOTE: The property described in the Third Schedule referred to is part of Liscombe House.

- 3 (18.10.1993) A Conveyance of Home Farm Farmhouse dated 31 July 1987 made between (1) Sir Nicholas Cosmo Bonsor (Vendor) and (2) Richard Token Walpole and Judith Hazel Walpole (Purchasers) contains the following covenants by the Vendor:-

"THE Vendor with the intent and so as to bind the adjoining or neighbouring land of the Vendor into whosoever hands the same may come and to benefit and protect the Property hereby agreed to be sold or any part thereof but not so as to render himself personally liable for any breach of covenant committed after he has parted with all interest in the said adjoining or neighbouring property in respect of which such breach occurs hereby covenants with the Purchasers that he the Vendor and his successors in title shall not at any time hereafter use as said the adjoining or neighbouring land for the keeping of pigs or poultry"

- 4 (18.10.1993) A Conveyance of Home Farm Barn dated 17 February 1989 made between (1) Sir Nicholas Cosmo Bonsor (Vendor) and (2) Richard Token Walpole and Judith Hazel Walpole (Purchasers) contains the following covenants by the Vendor:-

"THE Vendor with the intent and so as to bind the adjoining or neighbouring land of the Vendor into whosoever hands the same may come and to benefit and protect the Property hereby agreed to be sold or any part thereof but not so as to render himself personally liable for any breach of covenant committed after he has parted with all interest in the said adjoining or neighbouring property in respect of which such breach occurs hereby covenants with the Purchasers:

(i) that he the Vendor and his successors in title shall not at any time hereafter use the said adjoining or neighbouring land for the keeping of pigs or poultry"

C: Charges Register continued

- 5 (18.10.1996) A Transfer of the land in this title and other land dated 9 February 1996 made between (1) Sir Nicholas Cosmo Bonsor (Transferor) and (2) Liscombe Holdings PLC (Transferee) contains the following covenants:-

"The Transferee HEREBY COVENANTS with the Transferor so as to benefit the residue of the land comprised in title number BM191178 and each and every part thereof ("the Retained Land") and so far as to bind the land hereby transferred into whosoever hands the same may come that the Transferee on behalf of itself and its successors in title will not:

4.1 use the Property or any part of it for any purpose which may be or become a nuisance (whether or not amounting to a legal nuisance) or an annoyance or obnoxious to the Seller or his successors in title (including tenants and occupiers) to the Retained Land or any building erected on any part of it provided that the Transferor hereby acknowledges that the use of the property as offices a health farm for equestrian usage music recording studio and music related enterprises and events film studios and filming and for shooting shall not be deemed a breach of this covenant."

- 6 (18.10.1996) A Transfer of the land edged and numbered 1, 2 and 4 in blue on the title plan and other land dated 30 September 1996 made between (1) Sir Nicholas Cosmo Bonsor (Transferor) and (2) Liscombe Holdings PLC (Transferee) contains the following covenants:-

"The Transferee on behalf of itself and its successors in title HEREBY COVENANTS with the Transferor so as to benefit the residue of the land comprised in title number BM191178 and each and every part thereof ("the Retained Land") and so far as to bind the land hereby transferred into whosoever hands the same may come as follows:-

4.1 The Transferee will not:

.....

4.1.2 use the Property or any part of it for any purpose which may or become a nuisance (whether or not amounting to a legal nuisance) or an annoyance or obnoxious to the Transferor or his successors in title (including tenants and occupiers) to the Retained Land or any building erected on any part of it provided that and the Transferor hereby acknowledges the use of the Property (other than Sowsters Park as referred to above) for a golf course (including a clubhouse) for car parking for appropriate residential development around a golf course a petrol station and garage on that part of the Property known as Dollies Field and in the event of a bypass being constructed within 80 years from the date hereof a residential development adjacent to such bypass shall not be deemed to be a breach of this covenant"

- 7 A Transfer of the land edged and numbered 3 in blue on the title plan and other land dated 23 June 2000 made between (1) Liscombe Holdings Plc and (2) Martin John Darvill contains restrictive covenants.

NOTE: Copy filed under BM253286.

- 8 A Transfer of land lying to the North East of the land in this title dated 28 July 2004 made between (1) M8 PLC and (2) Nigel Alexander Oliver Smith contains restrictive covenants by the Transferor affecting the land edged and numbered 1, 2 and 4 in blue on the title plan.

NOTE: Copy filed under BM294300.

- 9 A Transfer of two pieces of land adjoining 6 Rock Farm dated 28 July 2004 made between (1) M8 PLC and (2) Carole Ann Tobin and Claire Jean Bellanca contains restrictive covenants by the Transferor affecting the land edged and numbered 1, 2 and 4 in blue on the title plan.

NOTE: Copy filed under BM295323.

- 10 A Transfer of land lying to the East of the land in this title dated 28 July 2004 made between (1) M8 PLC and (2) Nexus Health Limited contains restrictive covenants by the Transferor affecting the land edged and numbered 1, 2 and 4 in blue on the title plan.

C: Charges Register continued

NOTE: Copy filed under BM298731.

- 11 A Transfer of land adjoining 4 Rock Lane Farm dated 4 August 2004 made between (1) M8 PLC and (2) Gary Scott Crutchfield and Gemma Louise Thomas contains restrictive covenants by the Transferor affecting the land edged and numbered 1, 2 and 4 in blue on the title plan.

NOTE: Copy filed under BM294479.

- 12 A Transfer of the land edged and numbered 4 in blue on the title plan dated 3 February 2006 made between (1) M8 Plc and (2) Thameside Homes Limited contains restrictive covenants.

NOTE: Copy filed under BM308821.

- 13 A Transfer of the land edged and numbered 3 in blue on the title plan and other land dated 3 February 2006 made between (1) Martin John Darvill (Transferor) and (2) Thameside Homes Limited (Transferee) contains covenants details of which are set out in the schedule of restrictive covenants hereto.

- 14 (14.02.2006) A Transfer of the land edged and numbered 3 and 4 in blue on the title plan and other land dated 3 February 2006 made between (1) M8 Plc and (2) Thameside Homes Limited contains restrictive covenants by the Transferor affecting the land edged and numbered 1 and 2 in blue on the title plan identical with those contained in the Transfer dated 28 July 2004 referred to above.

NOTE: Copy filed under BM308821.

- 15 (26.03.2007) A Transfer of the edged and numbered 1 in blue on the title plan and other land dated 28 February 2007 made between (1) M8 plc and (2) Thameside Homes Limited contains restrictive covenants.

NOTE: Copy filed under BM322049.

- 16 (26.11.2007) The land is subject to the rights granted by a Transfer of 5 The Courtyard dated 24 May 2007 made between (1) Thameside Homes Limited and (2) John Albert Ravenscroft Jeffers and Valerie Jeffers.

NOTE: Copy filed under BM330105.

- 17 (23.06.2008) A Transfer of land lying to the East of the land in this title dated 4 March 2008 made between (1) M8 PLC and Nexus Health Limited and (2) Honeydon Farms Limited contains restrictive covenants by the Transferor affecting the land edged and numbered 2 in blue on the title plan identical with those contained in the Transfer dated 28 July 2004 referred to above.

NOTE: -Copy filed under BM336470.

- 18 (10.07.2007) The parts of the land affected thereby are subject to the leases set out in the schedule of leases hereto.
The leases grant and reserve easements as therein mentioned.

- 19 (28.09.2016) By a Deed dated 23 August 2016 made between (1) Thameside Homes Limited (2) The Courtyard Management Company (Rock Lane Farm) Limited and (3) Colin Sutherland and Julie Ann Bedford the terms of the lease dated 29 June 2007 referred to in the schedule of leases hereto were varied.

NOTE: Copy Deed filed under BM327884.

- 20 (12.12.2016) The land edged and numbered 1, 3 and 4 in blue on the title plan is subject to any rights that are reserved by a Transfer which included the land edged and numbered 1, 3 and 4 in blue on the title plan dated 1 November 2016 made between (1) Thameside Homes Limited and (2) Courtyard Management Company (Rock Lane Farm) Limited and affect the registered land.

NOTE: Copy filed.

Schedule of restrictive covenants

- 1 The following are details of the covenants contained in the Transfer dated 3 February 2006 referred to in the Charges Register:-

 "The Transferee covenants with the Transferor with the intention of binding the Property and each and every part of it into whosoever hands the same may come:-

 1. To pay on demand a fair and proportionate part of the cost of maintaining and repairing and renewing the Service Apparatus serving the Property

 2. The Transferee must not do or permit or suffer to be done anything that will or might tend to terminate obstruct diminish restrict interrupt interfere with or in any way impede or prejudice the supply of Services passing through the Property and serving the Retained Land or any of the exceptions reserved by the Second Schedule

 3. The Transferee must not cause or permit or suffer to be done in or upon the Property anything that may be or grow to be a nuisance to the Transferor or the owner or occupier for the time being of any part of the Retained Land or that would or would tend to damage weaken or endanger or interfere with the Retained Land

 DEFINITIONS AND INTERPRETATIONS

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 "the Retained Land" means the remainder of the land in Title Number BM253286 retained by the Transferor and not forming part of this Transfer

 "Services" means water sewage gas electricity telephone electronic and other services from and to the Property

 "Service Apparatus" means sewers drains channels pipes water courses gutters wires cables ducts flues conduits laser optic fibres electronic data or impulse communication transmission or reception systems and other conducting media septic tanks and associated equipment"

Schedule of notices of leases

	Registration date and plan ref.	Property description	Date of lease and term	Lessee's title
1	11.07.2007 Edged and numbered 4 in blue (part of)	10 The Courtyard, Rocklane Farm (ground floor flat) and parking space NOTE: The lease comprises also other land.	28.02.2007 999 years from 1.11.2006	BM325364
2	19.09.2007 Edged and numbered 3 in blue (part of)	14 The Courtyard (first and second floor flat) and parking space and garden ground NOTE 1: See entry in Charges Register relating to deed dated 23 August 2016. NOTE 2: The lease comprises also other land	29.06.2007 999 years from 1.11.2006	BM327884
3	13.12.2007 Edged and numbered 4 in blue (part of)	13 The Courtyard (first and second floor flat), garden ground and parking space NOTE: The lease comprises also other land.	22.12.2006 999 years from 1.11.2006	BM330735
4	03.07.2015 Edged and numbered 4 in blue (part of)	land adjoining 10 The Courtyard	09.06.2015 999 years commencing on and including 1.11.2006	BM398265

Schedule of notices of leases continued

	Registration date and plan ref.	Property description	Date of lease and term	Lessee's title
5	10.07.2007 edged and numbered 1 and 3 in blue (part of)	12 The Courtyard, Rock Lane Farm (ground floor flat) and parking space	24.05.2007 999 years from 01/11/2006	BM325313
	NOTE 1: The lease comprises also other land.			
	NOTE 2: The lease dated 24 May 2007 referred to above has been determined as to the land shown hatched blue on the title plan.			
6	21.04.2017 edged and numbered 2 in blue	land at 12 Liscombe Park	03.08.2016 999 years commencing on and including 01.11.2006	BM413908

End of register